

Amendment No. 1 to HB1639

Crawford  
Signature of Sponsor

**AMEND Senate Bill No. 1880**

**House Bill No. 1639\***

by deleting all language after the enacting clause and substituting:

SECTION 1. Tennessee Code Annotated, Title 4, Chapter 3, Part 20, is amended by adding the following as a new section:

**4-3-2020. Office of homeland security.**

(a) There is created within the department of safety the office of homeland security.

(b) The commissioner shall appoint the head of the office.

(c) The office shall employ such commissioned agents and noncommissioned personnel as may be necessary to carry out the operations of the office. Agents must be commissioned under § 38-3-114.

(d) The office may:

(1) Direct the state's homeland security activities, including, but not limited to, the planning, coordination, and implementation of all homeland security prevention, protection, and response operations;

(2) Design, develop, and implement a comprehensive, coordinated strategy to secure this state from terrorist threats and attacks;

(3) Assist related agencies of the federal government, agencies of local governments, agencies of other state governments, and related private sector entities on matters of homeland security;

(4) At the request of the chief law enforcement agent of a state or local law enforcement agency, provide technical and investigative support;

(5) Conduct investigations and provide technical and investigative support when the office has reasonable suspicion to believe a violation of the laws of this state has occurred, is occurring, or is imminent, and the investigation relates to one (1) or more of the following:

(A) Threats or acts of terrorism or suspected terrorism;

(B) Threats to, or attacks on, schools in accordance with § 49-6-2701;

(C) Threats to, or attacks on, critical infrastructure;

(D) Threats to, or attacks on, public officials;

(E) Protection of public officials, locations, and events;

(F) Cybercrimes and cyber-enabled offenses including:

(i) Unauthorized access to, intrusion into, or interference with the operation of a computer, computer system, computer network, or data;

(ii) Damage to, disruption of, or denial of service affecting critical infrastructure or essential governmental services;

(iii) Cyber-enabled fraud, extortion, ransomware, or theft;  
and

(iv) Online threats or coordinated cyber activity intended to facilitate an offense described in subdivisions (a)(5)(A)–(F);

(6) Administer any funds as may be authorized by the general assembly;

(7) Coordinate policy related to school security according to § 49-6-802 and review school security plans as authorized in § 49-6-4302;

(8) Upon request of the secretary of state's office, assist with securing the state's election infrastructure; and

(9) Cooperate and exchange information with other state agencies, other law enforcement agencies, and federal, state, and local law enforcement

stakeholders, within and outside of this state, through a statewide information and intelligence center to obtain information to prevent, detect, and control crime and apprehend criminals.

(e) For purposes of subdivision (d)(5), a cyber misinformation campaign or a cyber disinformation campaign is not grounds for investigation unless there is a reasonable suspicion that the conduct is undertaken in furtherance of, or constitutes, a violation of the criminal laws of this state.

(f) Homeland security agents are not prohibited from investigating crimes not specifically referred to in this section if they are discovered in furtherance of an investigation of a crime the homeland security agent is authorized to investigate pursuant to this section. Likewise, other law enforcement agencies are not prohibited from investigating crimes referred to in this section.

SECTION 2. Tennessee Code Annotated, Section 38-3-114, is amended by deleting the section and substituting instead:

(a) The commissioner of safety may commission such number of homeland security agents who directly support state, federal, and local law enforcement activities, as authorized in § 4-3-2020, to act as peace officers for the office of homeland security.

(b) Each homeland security agent, throughout every county in this state, has the powers of a peace officer, including the power to make arrests for public offenses anywhere in this state. Further, such agents may serve process in criminal prosecutions for such offenses, and may carry weapons for the reasonable purposes of their offices and while in the performance of their assigned duties, and carry off-duty as authorized by § 39-17-1350.

(c) The keepers of jails in any county or municipality where a violation occurs, for which any such arrest is made by a homeland security agent, shall receive all persons arrested by such agent to be dealt with according to law, and persons so arrested must

be received by keepers of jails on the same basis and have the same status as prisoners arrested by any other law enforcement agent.

(d) Every homeland security agent shall, when on duty, have in the agent's possession a badge and identification card identifying the agent as a homeland security agent, and the agent shall exhibit the badge and identification card on demand and before making an arrest within a reasonable time.

(e) Homeland security agents appointed under this section must complete appropriate initial training and recurrent law enforcement training substantially equivalent to the requirements of the Tennessee peace officer standards and training commission.

SECTION 3. The heading in this act is for reference purposes only and does not constitute a part of the law enacted by this act. However, the Tennessee Code Commission is requested to include the heading in any compilation or publication containing this act.

SECTION 4. This act takes effect upon becoming a law, the public welfare requiring it.